



CHAPTER 37

An Act to make further provision as to gratuities payable in respect of persons employed in the civil service of the State otherwise than in an established capacity and as to the application of the Superannuation Acts to persons entering the civil service of the State after having been in other employment. [17th July, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In subsections (1) and (2) of section thirty-nine of the Superannuation Act, 1949 (which authorise the Treasury to grant a gratuity to a person who, having served in an unestablished capacity in the civil service for seven years or more, dies or retires while still in his employment or is removed from his employment),—

- (a) for the references to seven years there shall be substituted references to five years, and
- (b) the provisions prescribing the amount of the gratuity which may be granted shall cease to have effect,

Gratuities for persons serving in unestablished or part-time capacities in the civil service.
12, 13 & 14
Geo. 6. c. 44.

and in that section, after subsection (2), there shall be inserted the following subsection—

“(2A) The rate at which a gratuity may be granted under either of the foregoing subsections shall be—

- (a) for each year of service in the employment, up to five years, one week's pay,
- (b) for each year of such service in excess of five years and up to ten years, two weeks' pay, and

(c) for each year of such service in excess of ten years, four weeks' pay:

Provided that the total amount of the gratuity shall not exceed the amount of one year's pay."

(2) In subsection (5) of section forty-one of the Superannuation Act, 1949 (which provides that for the purposes of the said section thirty-nine a person who, as a direct result of injury sustained or disease contracted in the discharge of his duty, dies with less than seven years' service in an unestablished capacity shall be deemed to have had seven years' such service), for the references to seven years there shall be substituted references to five years.

(3) This section shall have effect as respects a gratuity granted under the said section thirty-nine or under section forty of the said Act (which applies the provisions of the said section thirty-nine in relation to persons serving in a part-time capacity) in a case where the death, retirement or removal took place on or after the fifteenth day of May, nineteen hundred and fifty-seven.

Transfer to
the civil service
of the State.

2.—(1) Where, in connection with the provision of a new Government service or the extension of an existing Government service, persons have been taken into the civil service of the State after having been employed by a body or organisation—

- (a) which had as its object, or one of its objects, the provision of services similar to the said Government service, and
- (b) the income of which was wholly or partly derived from moneys provided by Parliament,

and in the opinion of the Treasury their employment by that body or organisation was of the same nature and for the same purpose as their employment in the service of the State, the Treasury may by rules contained in a statutory instrument provide for service in employment by that body or organisation being reckoned, in such manner and to such extent as may be specified in the rules, as service to the State for the purposes of the Superannuation Acts and modify in other respects the provisions of those Acts as they apply in relation to those persons.

(2) Rules under this section may, in relation to persons who had acquired or were in the course of acquiring pension rights in respect of their employment by any such body or organisation, in particular provide for making it a condition of obtaining benefits under the Superannuation Acts—

- (a) that any contributions made by a person in order to obtain any such pension rights, being contributions refunded to him on the termination of the employment, shall be paid to the Exchequer, and

(b) that payments are to be made by the body or organisation to the Exchequer in respect of those persons.

(3) This section shall not apply in relation to employment of any of the kinds specified in subsection (1) of section three or subsection (1) of section four of the Superannuation (Miscellaneous Provisions) Act, 1948 (which makes special provision for certain classes of persons transferred to the service of the State), but, subject to that, this section shall apply whether or not the time at which the persons concerned were taken into the service of the State is a time after the passing of this Act. 11 & 12 Geo. 6.
c. 33.

(4) A statutory instrument containing rules under this section shall be subject to annulment in pursuance of a resolution of either House of Parliament.

3.—(1) Where at some time before the thirtieth day of September, nineteen hundred and thirty-four, a person entered the civil service of the State, after having served in a temporary capacity with the Imperial War Graves Commission, his service in a temporary capacity with that Commission before that time, but not before the first day of January, nineteen hundred and nineteen, may, subject to the provisions of this section, be reckoned for the purposes of the Superannuation Acts as employment in an unestablished capacity within the meaning of section three of the Superannuation Act, 1935. Temporary service with Imperial War Graves Commission before October, 1934.

25 & 26 Geo. 6.
c. 23.

(2) Where the said Commission paid a gratuity to a person to whom the foregoing subsection applies in respect of his service with the Commission, it shall be a condition of the making of any payment under the Superannuation Acts in respect of that person's service, so far as the amount of that payment is dependent on the provisions of the foregoing subsection, that there has been paid to the Exchequer a sum equal to the amount of the said gratuity.

(3) The Treasury may, if they think fit, deduct any amount payable to them under the last foregoing subsection from any allowance or gratuity payable in respect of the person in question under subsection (2) of section one or section two of the Superannuation Act, 1909, or any other lump sum payment so payable under the Superannuation Acts, and, where they do so, the person entitled to the lump sum payment shall not be entitled to require any other person to make any contribution towards the deduction borne by him. 9 Edw. 7. c. 10.

(4) This section shall not have effect so as to authorise an increase in an annual superannuation allowance or pension so far as the allowance or pension is payable in respect of a period before the passing of this Act.

Expenses.

4. There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums which, under any enactment, are payable out of moneys so provided.

**Short title,
construction
and repeals.**

5.—(1) This Act may be cited as the Superannuation Act, 1957, and shall be construed as one with the Superannuation Acts.

(2) In this Act—

“pension right” includes all forms of right to or eligibility for present or future payments of a pension, lump sum or gratuity;

“Superannuation Acts” means the Superannuation Acts, 1834 to 1950, and any Act amending those Acts.

(3) References in this Act to any enactment shall be construed as a reference to that enactment as amended by any subsequent enactment.

(4) In section thirty-nine of the Superannuation Act, 1949, in subsections (1) and (2) the words from “at the rate of” to the end of the subsection shall be repealed.

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Housing and Town Development (Scotland) Act, 1957

5 & 6 ELIZ. 2 CH. 38

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